

BC407302 BC407302

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-08-31

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Case Number: BC407302 Hearing Date: August 31, 2026 Dept: 529

RICHARD GUIDO ET

AL VS ANANSA SO ET AL

MOTION

FOR STAY OF ENFORCEMENT OF JUDGMENT

Date of Hearing: August

31, 2026 Trial

Date: None set

Department: 529 Case

No.: BC407302

Moving Party: Defendant

Anansa So

Responding Party: Judgment

Creditor Mark Schulman 401(k) Profit

BACKGROUND

On February 9, 2009, Plaintiffs Richard

Guido and Leigh Anne Delport filed a complaint against Anansa So and Irene Tsu

for breach of contract, specific performance, fraud, harassment and

retaliation, intentional infliction of emotional distress and negligent

infliction of emotional distress.

Judgment was entered August 11, 2011 in

favor of Plaintiff after a jury trial.

[Tentative] Ruling

Defendant/Judgment Debtor Anansa So's Motion for Stay of Enforcement of Judgment is DENIED.

REQUEST FOR JUDICIAL NOTICE

Defendant/Judgment Debtor Anansa So requests this court take judicial notice of the following: (1) Judgment entered herein in August 2011 (Exh. 1); (2) Defendant Anansa So's Complaint against Mark Schulman, LASC No. 25LBCV00124 (Exh. 2); (3) Notice of Appeal, Court of Appeal Case No. B3489889 (Exh. 3); (4) Minute Order re Hearing on Motion for Order Approving Affidavit of Identity as to Judgment Debtor Anansa So and Hearing on Motion to Stay Execution in LASC No. 25LBCV00124 (Exh. 4); (5) Further Briefing by Mr. Mark Schulman in support of Motion for Order Assigning Rights to Payment to Judgment Creditor (Exh. 5); (6) Application for Order to Show Cause Re: Sale of Dwelling by Mr. Schulman (Exh. 6); and (7) Search results for "Mark Schulman" for debt collector license from the Nationwide Multistate Licensing System and Registry (Exh. 7).

The court GRANTS the request for judicial notice as to the existence of the documents.

EVIDENTIARY OBJECTIONS

Judgment Creditor Schulman objects to various parts of the moving papers and request for judicial notice. The court OVERRULES the objections.

DISCUSSION

Defendant/Judgment Debtor Anansa So moves this court for an order staying enforcement of the judgment issued by this court on the grounds Defendant has an appeal that is pending.

Code of Civil Procedure section 918 provides:

(a) Subject to subdivision (b),
the trial court may stay the enforcement of any judgment or order.

(b) If the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days beyond the last date on which a notice of appeal could be filed.

(c) This section applies whether or not an appeal will be taken from the judgment or order and whether or not a notice of appeal has been filed.

Code of Civil Procedure section 918.5 provides:¿¿

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(a) The trial court may, in its discretion, stay the enforcement of a judgment or order if the judgment debtor has another action pending on a disputed claim against the judgment creditor.

(b) In exercising its discretion under this section, the court shall consider all of the following:¿

(1) The likelihood of the judgment debtor¿prevailing in the other action.¿

(2) The amount of the judgment of the judgment creditor as compared to the amount of the probable recovery of the judgment debtor in the action on the disputed claim.¿

(3) The financial ability of the judgment creditor to satisfy the judgment if a judgment is rendered against the judgment creditor in the action on the disputed claim.¿

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Defendant contends Defendant has a suit pending before this court

against Mr. Schulman, the purported assignee of Plaintiffs. In that lawsuit, Defendant seeks restitution and compensation against Mr. Schulman for damages suffered for illegal seizure of money held in a bank account in trust by her for her son, as well as a family heirloom Cartier watch of sentimental value that was left for her by her late husband and kept in a bank deposit box. Defendant further contends she would also be entitled to a set-off against Mr. Schulman and is likely to succeed in her lawsuit against Mr. Schulman as he violated her property rights by seizing the contents of her bank account and safe deposit box without the required statutory notice. Defendant maintains the balance of equities favors granting a stay and he will not be prejudiced should a stay be granted as he is guilty of laches. The original judgment debt amount is a total of amount of \$149,705 yet Mr. Schulman claims a lien on Defendant's rental property which is valued in the million of dollars. The judgment was also rendered in 2011 yet Mr. Schulman began enforcing the judgment around 2018.

In opposition, Mr. Schulman first argues Code of Civil Procedure 918 is not applicable. Mr. Schulman contends the judgment here is a money judgment. As such, an undertaking would be required to stay enforcement while an appeal was pending and no consent to a stay has been requested or given.

The court agrees Code of Civil Procedure section 918 is not applicable. For money judgments specifically, a party can and must file an undertaking to stay enforcement of a money judgment pending appeal as required by Code of Civil Procedure section 917.1. Section 918(b) comes into play to restrict the trial court from granting a stay of a money judgment for more than 10 days beyond the last date to file a notice of appeal, absent the adverse party's consent.

Next, Mr. Schulman argues Judgment Debtor presented no evidence establishing a likelihood of prevailing as Judgment Debtor lost an anti-SLAPP motion and as a result, it is highly unlikely judgment debtor will prevail. Moreover, Judgment Debtor presented no evidence of her "probable recovery" because even if she were somehow to prevail, we have no idea what she might recover, if anything. There is no declaration from judgment debtor So about her claimed harms or damages. Lastly, Judgment Debtor presented no evidence that Mr. Schulman would be unable to satisfy the judgment as there is no declaration from moving party as to Judgment Creditor's assets, liabilities, income, or expenses.

The court finds Judgment Debtor has not satisfied the requirements

of Section 918.5. As noted above, under Code of Civil Procedure section 918.5, the judgment debtor must have an active lawsuit pending against the judgment creditor, and the court must consider three mandatory factors: the likelihood of the judgment debtor prevailing in the other action, the comparative amounts of the judgments, and the judgment creditor's financial ability to satisfy a potential judgment against them. While there is a pending lawsuit against Mr. Schulman, Plaintiff has not sufficiently demonstrated the likelihood of prevailing. As noted by Mr. Schulman, that complaint has been struck by an anti-SLAPP motion. Moreover, Judgment Debtor does not provide any evidence of her probable recovery. Lastly, Judgment Debtor has not presented evidence showing the Judgment Creditor lacks sufficient assets or financial capacity to satisfy a potential judgment in the pending action.

As for Judgment Debtor's equitable arguments, the court finds laches is not available in an action at law. (See *Pratali v. Gates* (1992) 4 Cal.App.4th 632, 645.)

Based on the foregoing, Defendant/Judgment Debtor Anansa So's Motion for Stay of Enforcement of Judgment is DENIED.